Statement

Sensitive

Statement in the matter of R v Vida Reid

Name	Marish Cimafranca
Occupation	Carer
Address	Known to National Disability Insurance Scheme (NDIS)
Date	14 October 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Marish Cimafranca and I am 37 years old.

3. I am the primary carer for my daughter Miah Williams I solely manage all of her National Disability Insurance Scheme (NDIS) plans and provider services.

4. On 20 February 2020, I completed a Verbal Access Request Form (VAR) to apply for access for my daughter Miah Williams (Miah) to the NDIS, who has been diagnosed with Down Syndrome.

5. In September 2020, Miah was accepted as a participant of the NDIS and was given an NDIS number 431425277. Her first plan was from 8 April 2020 to 10 May 2020 which was to the value of $981.09. Her current NDIS plan is from 13 January 2022 to 13 January 2023 which is to the value of $40,490.93.

6. My understanding of the NDIS is to provide funding to pay for services in assisting Miah with everyday living and supports with her disabilities and early intervention.

7. In March 2021, I met my friend Jerusha at a children's park and we were discussing the NDIS. Jerusha mentioned she had a provider called Forward Focused Group

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C. Bruckner

(FFG) that could help me with my daughter as she was not walking. I wanted to know about getting a support worker for Miah as I needed the help. I asked Jerusha for FFG's phone number and she gave me Vida's phone number.

8. In June 2021, I called Vida on the number Jerusha gave me and spoke to Vida about the services she could arrange from FFG to support me in raising my daughter Miah. In this conversation I did not explain much I needed in detail for Miah as Vida said she was there to support me with what Miah needed. Vida explained to me on the phone that she would send someone out to me to arrange to sign the Service Agreement.

9. In July 2021, a person named Chloe from FFG, came to my home stating she was here to arrange for me to sign the Service Agreement with FFG. In this meeting I explained my situation and the supports Miah needed, I noticed she had written notes with her, but I could not see what was written. We went through the Service Agreement on her computer, I do not remember the exact information and I was not supplied a copy, I did not ask for one I thought they would send it to me as other providers did. When I signed the Service Agreement it was electronically done on Chloe's computer with a special pen. After I signed the Service Agreement Chloe left my home but did not saying anything about being contacted again.

10. After a month I never heard anything from anyone at FFG, I tried to contact Chloe, I found it very difficult to contact her. I kept waiting for the progress and I was in need, I was waiting to see what the next steps were.

11. In September 2021, Chloe explained to me via email that there was going to be a man called Luke, come to my house and observe Miah for the plan. I was concerned at this time as the funding wasn't enough for these services and I asked Chloe what was going to be the charged for this man to come and she said there was still $5,000 available in the plan which would be enough.

12. In October 2021, a man named Luke from FFG contacted me first and ask to bring another therapist. A few days later he came to my house alone and observed Miah for about hour and then he left and said he would email me a report.

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13. On 12 October 2021 I received an email from Luke at FFG containing a report on his observations for Miah. In this email he also said he would come back to another observations on Miah. I responded to his email asking him how much does his visits cost but I never heard back.

14. After a week I did not hear back from Luke, so I looked on the portal of where I can see the claims on Miah's NDIS plan and I noticed large amounts of money had been claimed. When I logged into the portal I noticed there were unpaid invoices, and two of them were large amounts.

ANNEXURE: I NOW PRODUCE: MC001 A COPY OF THE INVOICES FROM FFG FOR THE AMOUNTS OF $4,405.11.

ANNEXURE: I NOW PRODUCE: MC002 A COPY OF THE INVOICES FROM FFG FOR THE AMOUNTS OF $3,685.23.

15. On 27 October 2021, I decided to email Chloe asking her about the large amounts of claims being made. I sent two emails and I never heard back from her, I also tried phoning her but never spoke to her or heard from her again.

ANNEXURE: I NOW PRODUCE MC003: A COPY OF THE EMAILS WHICH I SENT TO CHLOE ASKING ABOUT THE CLAIMS AGAINST MIAH'S NDIS PLAN.

16. In about November 2021, I was feeling worried as I wasn't getting any help and I spoke with my friend Jerusha who said to speak to Vida from FFG. I called Vida and she told me Chloe and Luke was no longer with them and she had someone new to be assigned to us. I then asked Vida about the travel charges because Chloe and Luke had only ever been to my home once. Vida said to me she was going to fix it and she assigned someone. I told her I was no longer interested because I didn't trust her anymore.

17. A few days later I received a call from Terri at FFG who I believe was another support co-ordinator who was trying to arrange supports for me from FFG. I told her

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I was not interested, and I had already cancelled my agreement with FFG when I spoke to Vida.

18. There was an invitation I received in December 2021 via email which was about staying somewhere in the city. I deleted it as I was no longer with FFG and not interested. On 29 December 2021, I received a voice message from a taxi driver stating: "Hi Marish my name is Hamid I am calling for Miss Shardi, I look after you on new years time is that possible to call me back on my phone please thank you have a good day". When I called him back he said that FFG gave him my number as I needed a taxi I then told him I was no longer with FFG and did not need a taxi.

19. On 28 January 2022, I have a voicemail from our plan manager at Provider Choice where she told me that the invoices they received from FFG were still outstanding. This voicemail was a result of an email I sent to Provider Choice where I told them not to process any invoices from FFG as they never provided any services. I can have this voicemail made available if required.

20. On 14 October 2022, Christine Bruckner (Investigator Bruckner) an investigator from the NDIS contacted me to ask about my claims for the NDIS. We had a brief conversation over the phone about these claims.

21. Later that day on 14 October 2022, Investigator Bruckner and I met in person, she showed me a list of claims which were submitted by FFG. I was able to see on the list, claims for 'Provider travel - non-labour costs', 'Assessment Recommendation Therapy And/or Training (Incl. AT) - Other Therapy' and 'Counselling' have been made by FFG. I can confirm I have never received these services from FFG.

22. Miah has never received any of the listed services which were shown to me by Investigator Bruckner on 14 October 2022. FFG only sent out two people on two separate occasions and that was Chloe in July 2021 and Luke on the 12 October 2021. I can say the services listed with Investigator Bruckner have never been received by myself or my daughter Miah.

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23. This statement is true to the best of my knowledge and belief. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Marish Cimafranca

Statement taken and signature witnessed by me about 11:40am on 14 October 2022 at in Perth in Western Australia.

Signature _____
Christine Bruckner – Fraud Investigator
Midland Perth WA

FORWARD FOCUSED
YOU ARE OUR FOCUS

TAX INVOICE

Miah Williams
143 Beachside Parade
YANCHEP WA 6035

Invoice Date
19 Oct 2021

Invoice Number
NDIS-000000401-1

Reference
NDIS 431425277

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
15_056_0128_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy - 11/10/2021	5.00	193.99	GST Free	969.95
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 20/09/2021	1.25	63.21	GST Free	79.01
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 30/08/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 20/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 20/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 24/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 24/08/2021	0.50	63.21	GST Free	31.61
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 01/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 15/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 20/09/2021	0.25	63.21	GST Free	15.80

Item	Description	Quantity	Unit Price	GST	Amount AUD
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 28/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 01/10/2021	0.50	63.21	GST Free	31.61
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 06/10/2021	0.50	63.21	GST Free	31.61
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 18/10/2021	1.00	63.21	GST Free	63.21
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 23/08/2021	0.75	63.21	GST Free	47.41
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 24/08/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 30/08/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 30/08/2021	2.00	63.21	GST Free	126.42
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 01/09/2021	0.75	63.21	GST Free	47.41
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 02/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 15/09/2021	0.50	63.21	GST Free	31.61
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 28/09/2021	0.50	63.21	GST Free	31.61
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 28/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 28/09/2021	0.25	63.21	GST Free	15.80
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 28/09/2021	0.75	63.21	GST Free	47.41
15_056_0128_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy - 29/09/2021	5.00	193.99	GST Free	969.95

Item	Description	Quantity	Unit Price	GST	Amount AUD
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 30/09/2021	0.75	63.21	GST Free	47.41
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 01/10/2021	0.25	63.21	GST Free	15.80
15_056_01 28_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy - 06/10/2021	3.00	193.99	GST Free	581.97
15_056_01 28_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy - 07/10/2021	2.00	193.99	GST Free	387.98
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 23/08/2021	0.25	63.21	GST Free	15.80
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 25/08/2021	0.50	63.21	GST Free	31.61
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 26/08/2021	0.50	63.21	GST Free	31.61
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 01/09/2021	0.25	63.21	GST Free	15.80
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 02/09/2021	0.25	63.21	GST Free	15.80
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 15/09/2021	0.25	63.21	GST Free	15.80
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 16/09/2021	0.50	63.21	GST Free	31.61
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 24/09/2021	0.50	63.21	GST Free	31.61
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 28/09/2021	0.25	63.21	GST Free	15.80
15_056_01 28_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy - 29/09/2021	0.50	193.99	GST Free	97.00
07_003_01 17_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 29/09/2021	0.25	63.21	GST Free	15.80
15_056_01 28_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy - 29/09/2021	1.50	193.99	GST Free	290.99

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Item	Description	Quantity	Unit Price	GST	Amount AUD
15_056_0128_1_3	Assessment Recommendation Therapy And/or Training (Incl. AT) - OtherTherapy - 14/10/2021	0.25	193.99	GST Free	48.50
				Subtotal	4,405.11
				TOTAL AUD	4,405.11

Due Date: 25 Oct 2021
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Miah Williams
Invoice Number	NDIS-000000401-1
Amount Due	4,405.11
Due Date	25 Oct 2021
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

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TAX INVOICE

Miah Williams
143 Beachside Parade
YANCHEP WA 6035

Invoice Date
6 Aug 2021

Invoice Number
NDIS-000000097-1

Reference
Number:431425277

ABN
98 643 878 639

Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
ACC:152003884 WA 6112
AUSTRALIA

Item	Description	Quantity	Unit Price	GST	Amount AUD
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 28/07/2021	3.75	63.21	GST Free	237.04
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 05/08/2021	4.25	63.21	GST Free	268.64
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 29/07/2021	3.75	63.21	GST Free	237.04
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 29/07/2021	4.00	63.21	GST Free	252.84
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 04/08/2021	4.00	63.21	GST Free	252.84
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 04/08/2021	4.00	63.21	GST Free	252.84
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 29/07/2021	4.50	63.21	GST Free	284.45
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 29/07/2021	3.50	63.21	GST Free	221.24
07_003_0117_8_3	CB and Training in Plan and Financial Management by a SupportCoordinator - 05/08/2021	3.75	63.21	GST Free	237.04
07_799_0106_6_3	Provider travel - non-labour costs - 28/07/2021	188.40	0.85	GST Free	160.14
07_799_0106_6_3	Provider travel - non-labour costs - 05/08/2021	188.40	0.85	GST Free	160.14

Bruckner, Christine MC003 1 of 1

From: Marish Cimafranca <marish.cimafranca@yahoo.com>
Sent: Friday, 14 October 2022 1:58 PM
To: Bruckner, Christine
Subject: Fw: Behaviour therapy cost

You don't often get email from marish.cimafranca@yahoo.com. Learn why this is important

Sent from Yahoo Mail for iPhone

Begin forwarded message:

On Friday, October 29, 2021, 6:14 am, Marish Cimafranca <marish.cimafranca@yahoo.com> wrote:

Hi Chloe,

I'm checking my daughter's budget fund now and the transactions that has been made.
Can you explain to me why this big amount of transactions from Forward focused? What are these?
Why is charging so big amount from my daughter's fund. Could you explain this to me please?
I don't get it. I need to know please... I have been waiting to get help and until now there us no progress.
And i need to know how much cost that behavioural observation that Luke has been done. Please respond to me.

Regards,

Marish

Sent from Yahoo Mail for iPhone

On Wednesday, October 27, 2021, 10:17 pm, Marish Cimafranca <marish.cimafranca@yahoo.com> wrote:

Hi Chloe,

I just want to know how much cost the behavioural therapy every time Luke comes here including the travel and making the report? I need to track the budget of Miah.
Please call me when you have time this week.
Thanks

Regards

Marish

Sent from Yahoo Mail for iPhone